

State Legislature

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The State Legislature Legislative Assembly (Vidhan Sabha)

The Vidhan Sabha or the Legislative Assembly is the lower house of the state legislature in the different states & for the two of the union territories, Delhi & Pondicherry. Members of a Vidhan Sabha are direct representatives of the people of the particular state as they are directly elected by the adult suffrage. Each Vidhan Sabha is formed for a five year term after which all seats are up for election. The maximum size of Vidhan Sabha is not more than 500 members & not less than 60. However, the size of the Vidhan Sabha can be less than 60 members through an Act of Parliament, such is the case in the states of Goa, Sikkim & Mizoram. The Governor can appoint one member to represent the Anglo-Indian community if he or she finds that community to not be adequately represented in the House.

Qualification to be a member of Vidhan Sabha

1. To become a member of a Vidhan Sabha.
2. A person must be a citizen of India.
3. She/he must have attained 25 years of age.
4. She/he should be mentally sound & should not be bankrupt.
5. She/he should also state an affidavit that there are no criminal procedures against him.

Comparing Vidhan Sabha & Lok Sabha

The position of Vidhan Sabha is relatively stronger than Lok Sabha when it comes to the relation with the respective upper houses. The following are differences in the legislative procedures:

1. In case of Bills other than money Bills the position of Vidhan Sabha is stronger as compared to Lok Sabha. While disagreement between the two Houses of the Union Parliament is resolved by "Joint Sitting", there is no such provision of solving the deadlock at the state level. The upper house at the state level can just delay the bill for the maximum period of 4 months i.e. 3 months in first journey & 1 month in second journey.

2. While the period for passing a Bill (other than money Bill) from Rajya Sabha is six months is the case of Legislative Councils it is just three months.

Legislative Council (Vidhan Parishad)

The Legislative Council is a permanent body that cannot be dissolved; each Member of the Legislative Council (MLC) serves for a six-year term, with terms staggered so that the terms of one-third of a Council's members expire every two years. This arrangement parallels that for the Rajya Sabha, the upper house of the Parliament of India. Six states in India have a Legislative Council: Andhra Pradesh, Bihar, Jammu & Kashmir, Karnataka, Maharashtra & Uttar Pradesh.

Qualification to be a member of Vidhan Parishad

- She/he must be citizen of India.
- She/he must have attained at least 30 years of age.
- She/he must be mentally sound.
- She/he must not be a bankrupt.
- She/he must be listed the voters' list of the state for which he or she is contesting an election.

Election of members of Legislative Council

- One-third of the members are elected by members of local bodies such as corporations, municipalities, & Zilla Parishads.
- One-third of the members are elected by members of Legislative Assembly from among the persons who are not members of the Assembly.
- One-twelfth of the members are elected by the persons who are graduates of three years standing residing in that state.
- One-twelfth are elected by persons engaged for at least three years in teaching in educational institutions within the state not lower than secondary schools, including colleges & universities.
- One-sixth are nominated by the governor from persons having knowledge or practical experience in fields such as literature, science, arts, the co-operative movement & social service.